# Cyber Law India

PG Diploma cheat sheet for advocates and law students

IT Act 2000 and the 2008 amendment, IT Rules, CERT-In directions, DPDP Act and Rules, BNS, BNSS and BSA, and the landmark cases. Law stated as at 5 November 2026.

**Read this first.** Unmarked statements are ones I am confident in: recent developments were cross-checked against current sources in November 2026, and long-settled points (such as classic case holdings) rest on established knowledge. **[verify]** marks points that rest on memory, where sources conflict, or where the law is moving. Check those against the bare Act, the Gazette notification or the law report before you cite them. This sheet is AI-assisted study material, not legal advice.

## The headline issue

**Unauthorised access to a computer or device.** Section 43 of the IT Act is the civil contravention: no dishonest or fraudulent intent needed, remedy is compensation. Section 66 is the criminal offence: the same acts, but only when done dishonestly or fraudulently, with imprisonment up to 3 years, a fine up to ₹5 lakh, or both. The next page has the full comparison.

| Contents | Page |
|---|---|
| Section 43 versus Section 66: unauthorised access | 2 |
| IT Act 2000 and the 2008 amendment | 3 |
| Offences and penalties (current text) | 4 |
| IT Rules | 6 |
| CERT-In Directions, 28 April 2022 | 7 |
| DPDP Act 2023 and DPDP Rules 2025 | 7 |
| BNS, BNSS and BSA (from 1 July 2024) | 8 |
| Landmark cases | 11 |
| What has changed recently | 12 |
| Practice checklist | 12 |

# Section 43 versus Section 66: unauthorised access

| Point | Section 43 (civil) | Section 66 (criminal) |
|---|---|---|
| **Nature** | Contravention. The person is liable to pay damages by way of compensation to the person affected. | Offence. Prosecuted by the State after investigation. |
| **What triggers it** | Any act in clauses (a) to (j), done without the permission of the owner or any other person in charge of the computer, system or network. | Any act referred to in s.43, done dishonestly or fraudulently. Section 66 borrows its acts from s.43. |
| **Mental element** | No dishonest or fraudulent intent is an ingredient of clauses (a) to (i). Authority (permission) is the pivot. Clause (j) is different: it expressly requires an intention to cause damage. **[verify]** on scope-of-authority disputes, which are fact heavy. | Mens rea is essential. 'Dishonestly' is defined in IPC s.24 (intention of causing wrongful gain to one person or wrongful loss to another), now BNS s.2(7). 'Fraudulently' is defined in IPC s.25 (intention to defraud, but not otherwise), now BNS s.2(9). The Act's explanation still names the IPC sections; read them as the BNS equivalents **[verify]**. |
| **Consequence** | Compensation. The 2000 text capped it at ₹1 crore; the 2008 amendment removed the cap. | Imprisonment up to 3 years, or fine up to ₹5 lakh, or both. (2000 text, headed 'hacking': up to 3 years or ₹2 lakh.) |
| **Forum** | Adjudicating Officer under s.46 for claims up to ₹5 crore; above that, the competent civil court (s.46(1A)). Appeals under s.57 now go to TDSAT **[verify]**. | Investigation by a police officer not below Inspector (s.78). Trial before the Magistrate. Cognizable and bailable (s.77B and published Lok Sabha tables). |
| **Compounding** | Not applicable. | Compoundable under s.77A, with limits for repeat offenders, offences against women or children, and offences of a socio-economic nature **[verify]**. |
| **Parallel liability** | Section 77: compensation or penalty under the Act does not bar any other punishment. | The same facts can also attract BNS offences such as theft (s.303), cheating (s.318), or criminal breach of trust (s.316). Courts differ on how far the IT Act displaces general penal law (see Digumarti under Landmark cases). |

## The acts listed in section 43

Without permission of the owner or person in charge, a person: (a) accesses or secures access to the computer, system, network or resource; (b) downloads, copies or extracts data, including from removable storage; (c) introduces a computer contaminant or virus; (d) damages the computer, data or programmes; (e) disrupts it; (f) denies access to an authorised person; (g) assists another to access in contravention of the Act; (h) charges services to another's account by tampering; (i) destroys, deletes or alters information, or diminishes its value or utility; (j) steals, conceals, destroys or alters source code with an intention to cause damage.

## Related sections

- **s.65** tampering with computer source documents (knowingly or intentionally concealing, destroying or altering source code that must be kept by law): up to 3 years, or fine up to ₹2 lakh, or both.
- **s.66B to 66F** receiving a stolen computer resource, identity theft, cheating by personation, privacy violation, cyber terrorism (see the offences table).
- **s.66A** struck down in Shreya Singhal (2015) and formally omitted by the Jan Vishwas Act 2023 **[verify]** on the omission. Never cite it as a charge; the Supreme Court directed that nobody be prosecuted under it.
- **s.75** the Act applies to offences or contraventions committed outside India by any person if the act involves a computer, system or network located in India.
- **s.84B, 84C** abetment, and attempt (up to half of the longest term for the offence).

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> **Security testing and research.** Written authorisation from the owner removes the "without permission" element of s.43 and defeats the dishonest or fraudulent intent s.66 needs. Keep the scope letter, IP ranges, dates and named testers. My reading is that the IT Act has no express good-faith security research safe harbour **[verify]**.

### Exam traps

- Section 43 is not a 'hacking offence'. It is a civil contravention. Hacking as an offence is s.66.
- Section 66 has no free-standing definition. Always read it with s.43.
- Compensation under s.43 is uncapped since 2008, but the Adjudicating Officer only hears claims up to ₹5 crore.
- Section 43A (compensation for failure to protect sensitive personal data) is scheduled to be omitted when DPDP s.44(2) commences, around 13 May 2027 (18 months from 13 Nov 2025).

## IT Act 2000 and the 2008 amendment

| When | What happened |
|---|---|
| 1996 to 1997 | UNCITRAL Model Law on Electronic Commerce (1996). UN General Assembly resolution A/RES/51/162, cited in the Act's preamble as dated 30 January 1997, recommended states to adopt it. The IT Act is based on it. |
| 1999 to 2000 | IT Bill introduced; Act 21 of 2000 received assent on 9 June 2000 and came into force on 17 October 2000. Original Act: 94 sections, 13 chapters. Focus: legal recognition of electronic records and signatures, e-commerce, and a handful of offences. |
| 2004 to 2005 | The Bazee.com / Avnish Bajaj prosecution exposed the weakness of intermediary liability under the 2000 text, a possible driver of the 2008 rewrite of s.79 **[verify]**. |
| 2008 to 2009 | Information Technology (Amendment) Act 2008, passed after the 26/11 attacks (assent 5 February 2009 **[verify]**), in force 27 October 2009. Added or rewrote ss.43A, 66 to 66F, 67A to 67C, 69, 69A, 69B, 70A, 70B, 72A, 77A, 77B, 79, 79A, 84A to 84C; made 'electronic signature' technology neutral; redrafted s.79; removed the ₹1 crore cap in s.43. Act now about 124 sections and 14 chapters **[verify]**. |
| 2009 | Rules under ss.69, 69A and 69B: Interception, Monitoring and Decryption Rules 2009; Blocking Rules 2009; Traffic Data Monitoring Rules 2009. |
| 2011 | SPDI Rules (under s.43A) and Intermediary Guidelines Rules, both April 2011 **[verify]** on date. |
| 24 Mar 2015 | Shreya Singhal v Union of India: s.66A struck down, s.69A upheld, s.79(3)(b) read down. |
| 2017 | Tribunal mergers: appeals formerly to the Cyber Appellate Tribunal now lie to TDSAT **[verify]**. |
| 2021 to 2022 | IT (Intermediary Guidelines and Digital Media Ethics Code) Rules 2021 (25 Feb 2021); CERT-In Directions (28 Apr 2022); Grievance Appellate Committees added in Oct 2022. |
| 11 Aug 2023 | Jan Vishwas (Amendment of Provisions) Act 2023 decriminalised several IT Act provisions; the IT Act changes came into force on 30 Nov 2023 (S.O. 4745(E) dated 31 Oct 2023). DPDP Act 2023 also received assent. |
| 1 Jul 2024 | BNS, BNSS and BSA replaced the IPC, CrPC and Evidence Act. |
| 2025 to 2026 | DPDP Rules (Nov 2025); IT Rules amendments on takedown (Oct 2025) and synthetic media (Feb 2026); Supreme Court on BSA s.63(4) (May 2026). See the section What has changed recently. |

### Structure of the Act (as amended)

| Chapter | Sections | Subject |
|---|---|---|
| I to III | 1 to 10A | Preliminary; digital and electronic signatures; e-governance |
| IV, V | 11 to 16 | Attribution, acknowledgment and dispatch; secure electronic records and signatures |
| VI to VIII | 17 to 42 | Controller and Certifying Authorities; electronic signature certificates; duties of subscribers |
| IX | 43 to 47 | Penalties, compensation and adjudication |
| X | 48 to 64 | Appellate Tribunal (now TDSAT) **[verify]** |
| XI | 65 to 78 | Offences |
| XII, XIIA | 79, 79A | Intermediaries not liable in certain cases; Examiner of Electronic Evidence |
| XIII | 80 to 90 | Miscellaneous (search and arrest s.80, overriding effect s.81, offences by companies s.85, rule-making s.87). Sections 91 to 94 were omitted in 2008. |

## Offences and penalties (current text)

Figures below reflect the Jan Vishwas Act 2023 changes (in force 30 November 2023). Several provisions that once carried imprisonment are now civil penalties.

| Section | Subject | Punishment now | Note |
|---|---|---|---|
| 43 | Damage to computer, unauthorised access, etc. | Compensation (uncapped) | Civil. Adjudicating Officer up to ₹5 crore. |
| 65 | Tampering with computer source documents | Up to 3 years, or fine up to ₹2 lakh, or both | |
| 66 | Computer-related offences (s.43 acts, dishonestly or fraudulently) | Up to 3 years, or fine up to ₹5 lakh, or both | Cognizable, bailable. |
| 66B | Dishonestly receiving a stolen computer resource or device | Up to 3 years, or fine up to ₹1 lakh, or both | |
| 66C | Identity theft (fraudulent or dishonest use of password, e-signature, unique ID) | Up to 3 years and fine up to ₹1 lakh | |
| 66D | Cheating by personation using a computer resource | Up to 3 years and fine up to ₹1 lakh | Overlaps BNS s.319. |
| 66E | Violation of privacy (capturing or publishing images of a private area without consent) | Up to 3 years, or fine up to ₹2 lakh, or both | |
| 66F | Cyber terrorism | Imprisonment which may extend to life | Non-bailable, cognizable. **[verify]** |
| 67 | Publishing or transmitting obscene material | First: up to 3 years and fine up to ₹5 lakh. Later: up to 5 years and fine up to ₹10 lakh | |
| 67A | Sexually explicit material | First: up to 5 years and fine up to ₹10 lakh. Later: up to 7 years and fine up to ₹10 lakh | Non-bailable. **[verify]** |
| 67B | Child sexual abuse material | First: up to 5 years and fine up to ₹10 lakh. Later: up to 7 years and fine up to ₹10 lakh | Non-bailable. **[verify]** |
| 67C | Intermediary failing to preserve and retain information | Penalty up to ₹25 lakh | Was imprisonment; decriminalised 2023. |
| 68 | Failing to comply with Controller's directions | Penalty up to ₹25 lakh | Decriminalised 2023. |

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| Section | Subject | Punishment now | Note |
|---|---|---|---|
| 69 | Interception, monitoring or decryption directions; failure to assist | Up to 7 years and fine | Subject to the 2009 Rules. **[verify]** on bailability. |
| 69A | Blocking of public access; intermediary non-compliance | Up to 7 years and fine | Upheld in Shreya Singhal. |
| 69B | Traffic data monitoring; intermediary non-compliance | Up to 1 year, or fine up to ₹1 crore, or both | Term reduced in 2023. |
| 70 | Unauthorised access to a protected system | Up to 10 years and fine | NCIIPC under s.70A. |
| 70B(7) | Failing to give CERT-In information or comply with its directions | Up to 1 year, or fine up to ₹1 crore, or both | Basis for enforcing the 2022 Directions. |
| 71 | Misrepresentation to Controller or Certifying Authority | Up to 2 years, or fine up to ₹1 lakh, or both | |
| 72 | Breach of confidentiality and privacy by person exercising powers under the Act | Penalty up to ₹5 lakh | Decriminalised 2023. |
| 72A | Disclosure of personal information in breach of lawful contract | Penalty up to ₹25 lakh | Was up to 3 years or ₹5 lakh; decriminalised 2023. |
| 73, 74 | False electronic signature certificate; publication for fraudulent purpose | Up to 2 years, or fine up to ₹1 lakh, or both | |

## Other key provisions

| Section | Point |
|---|---|
| 43A | Body corporate that handles sensitive personal data and is negligent in keeping reasonable security practices is liable to compensation. Works with the SPDI Rules 2011. To be omitted when DPDP s.44(2) commences, around 13 May 2027. |
| 44, 45 | Penalties for failing to furnish information or file returns (up to ₹15 lakh a failure in s.44(a)); residuary penalty in s.45 (penalty up to ₹1 lakh plus compensation up to ₹10 lakh for an intermediary or body corporate, ₹1 lakh for others). |
| 46, 47 | Adjudicating Officer (Director-level officer; jurisdiction up to ₹5 crore). Factors for quantum: unfair gain, loss caused, repetition. The Jan Vishwas Act widened s.46 beyond Chapter IX. |
| 69, 69A, 69B | State powers: interception and decryption; blocking; traffic data monitoring for cyber security. Each has procedural Rules (2009). Judicial test after Puttaswamy: legality, legitimate aim, proportionality. |
| 70, 70A, 70B | Protected systems; National Critical Information Infrastructure Protection Centre; CERT-In as national agency (s.70B(6) power to call for information and give directions). |
| 79 | Safe harbour for intermediaries. Lost if the intermediary conspires, abets or aids, or fails to act expeditiously on actual knowledge. Read down in Shreya Singhal: actual knowledge means a court order or a government notification within Article 19(2). |
| 79A | Central Government may notify Examiners of Electronic Evidence. Opinion of an Examiner is expert evidence under BSA s.39(2). |
| 80, 81, 85 | Search and arrest without warrant in public places (Inspector or above); overriding effect; offences by companies. |
| 77A, 77B | Compounding (offences up to 3 years, with limits) **[verify]**; offences punishable with 3 years and above are cognizable and those with exactly 3 years are bailable. |

# IT Rules

| Rules | Under | Key points | Status |
|---|---|---|---|
| SPDI Rules 2011 (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) | s.43A, s.87(2)(ob) | Defines sensitive personal data (e.g. passwords, financial information, health, biometrics); written consent; privacy policy; grievance officer; reasonable security (ISO 27001 given as an example). | In force until DPDP s.44(2) commences (around 13 May 2027), when s.43A and the rule-making power are omitted. |
| Intermediary Guidelines Rules 2011 | s.79(2) | Due diligence for intermediaries; Rule 3(4) takedown on notice. | Replaced by the 2021 Rules. Rule 3(4) was read down in Shreya Singhal. |
| IT (Intermediary Guidelines and Digital Media Ethics Code) Rules 2021 | s.79, s.87 | Part II: due diligence (Rule 3), grievance officer. Rule 4: extra duties for significant social media intermediaries (50 lakh or more registered users): chief compliance officer, nodal contact person and resident grievance officer in India, monthly reports, and first-originator identification for messaging services **[verify]** on status. Part III: ethics code for news publishers and online curated content. | In force, with several provisions under challenge. |
| Amendment, Oct 2022 | | Grievance Appellate Committees (Rule 3A) **[verify]** on rule number. | In force. |
| Amendment, Apr 2023 | | Online gaming intermediaries; Rule 3(1)(b)(v) 'Fact Check Unit' for government business. | FCU provision struck down by Bombay High Court (Kunal Kamra, Sept 2024). Supreme Court issued notice on 10 Mar 2026, refused a stay, and referred the issues to a three-judge bench **[verify]**. |
| Amendment, 22 Oct 2025 | | Changes to Rule 3(1)(d) (takedown intimations) **[verify]** on exact content. | In force. Reported to be under challenge in the Bombay High Court **[verify]**. |
| Amendment, 10 Feb 2026 (in force 20 Feb 2026) | | Defines 'synthetically generated information' (audio, visual or audio-visual content that appears real); labelling and user-declaration duties; duty to prevent unlawful synthetic content; faster timelines: compliance with lawful takedown orders 36 hours to 3 hours, grievance disposal 15 days to 7 days, urgent complaints 72 to 36 hours, intimate-image complaints 24 to 2 hours. Commentaries cite different rule numbers **[verify]**. | In force. |
| Other Rules | | Interception, Blocking and Traffic Data Rules 2009; Adjudicating Officer Rules 2003 (amended 2023); CERT-In Rules 2013 **[verify]** on date. | |

Platform takedown litigation: in X Corp v Union of India the Karnataka High Court (24 Sept 2025) upheld use of s.79(3)(b) through the Sahyog portal; X Corp's appeal and related petitions are reported to be pending, and may be heard together with the FCU appeal **[verify]**.

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# CERT-In Directions, 28 April 2022

Issued by CERT-In (No. 20(3)/2022-CERT-In) under s.70B(6) of the IT Act, effective 60 days later (late June 2022). They bind service providers, intermediaries, data centres, body corporates and government organisations.

| Direction | Requirement |
|---|---|
| Time sync | Synchronise ICT system clocks to NIC or NPL time servers. |
| Incident reporting | Report the cyber incident types in Annexure I (20 types) to CERT-In within 6 hours of noticing the incident or being told of it. Examples: targeted scanning or probing, compromise of critical systems, unauthorised access, defacement, malicious code, data breach, data leak, attacks on IoT, cloud, payment systems, and AI/ML systems **[verify]** against the full Annexure. |
| Point of contact | Designate a point of contact and share details with CERT-In (Annexure II format). |
| Logs | Enable logs of all ICT systems and keep them securely for a rolling 180 days, within Indian jurisdiction; provide them to CERT-In on request or with an incident report. |
| Subscriber records | Data centres, VPS, cloud and VPN providers keep validated customer information for 5 years or longer after cancellation. |
| Virtual assets | Virtual asset service providers, exchanges and custodian wallet providers keep KYC and transaction records for 5 years. |

**Enforcement.** Failure to comply with s.70B(6) directions is punishable under s.70B(7) with imprisonment up to 1 year, or fine up to ₹1 crore, or both, in addition to other law. CERT-In also issued Comprehensive Cyber Security Audit Policy Guidelines (25 July 2025). **[verify]** whether any sector regulator's timelines (RBI, SEBI, IRDAI) are shorter for your client.

# DPDP Act 2023 and DPDP Rules 2025

Digital Personal Data Protection Act, 2023 (Act 22 of 2023), assent 11 August 2023. Rules: G.S.R. 846(E), 13 November 2025. Act commencement: G.S.R. 843(E), 13 November 2025.

| Commencement | What is in force or scheduled |
|---|---|
| 13 Nov 2025 (in force) | Act ss.1(2), 2, 18 to 26 (Data Protection Board), 35, 38 to 43, 44(1) (TRAI Act) and 44(3) (RTI Act s.8(1)(j)). Rules 1, 2 and 17 to 21. The Board was established the same day (G.S.R. 844(E), four members under G.S.R. 845(E)). |
| 13 Nov 2026 | Rule 4 (consent manager registration) and Act ss.6(9) and 27(1)(d). |
| Around 13 May 2027 (18 months from 13 Nov 2025) | Act ss.3 to 5, 6(1) to 6(8) and (10), 7 to 17, 27 (rest), 28 to 34, 36, 37 and 44(2) (omits IT Act s.43A). Rules 3, 5 to 16, 22 and 23: notice, consent, security, breach, children, SDF duties, rights, cross-border transfer. |

**Moving parts.** A proposal to shorten the 18-month period to 12 months was floated in January 2026; I found no notification of it as at September 2026 **[verify]**. Reports as of August to September 2026 say the Board's Chairperson and Members had not yet been appointed (applications were invited on 6 May 2026) **[verify]**. Until s.44(2) commences, s.43A and the SPDI Rules continue to apply.

### Key provisions

| Section | Content |
|---|---|
| 3 | Applies to digital personal data processed in India, and outside India if connected with offering goods or services to Data Principals in India. Excludes personal or domestic use and certain publicly available data **[verify]** on details. |
| 4 to 7 | Processing needs consent (free, specific, informed, unconditional, unambiguous, by clear affirmative action; withdrawal as easy as giving it) or a 'legitimate use' under s.7 (voluntary provision, State benefits and functions, legal obligation, medical emergency, employment, disasters). Notice under s.5. |
| 8 | Data Fiduciary duties: accuracy; reasonable security safeguards (s.8(5)); breach intimation to the Board and each affected Data Principal (s.8(6)); erasure when purpose ends; publish contact details; grievance redressal. |
| 9 | Children (under 18): verifiable parental consent; no processing likely to harm a child; no tracking, behavioural monitoring or targeted advertising directed at children, subject to exemptions by Rules. |
| 10 | Significant Data Fiduciary (notified by volume, sensitivity, risk): Data Protection Officer in India, independent auditor, periodic impact assessment. |
| 11 to 15 | Data Principal rights: information, correction, completion, updating and erasure, grievance redressal, nomination. Duties of Data Principals (s.15). |
| 16 | Cross-border transfer allowed except to countries the Government restricts by notification; stricter sectoral law prevails. |
| 17 | Exemptions: State instrumentalities (by notification), research and statistics, certain start-ups, and others. |
| 18 to 28 | Data Protection Board: composition, powers, digital-first procedure. Appeals to TDSAT (s.29). |
| 32, 33 | Voluntary undertaking; penalties in the Schedule. |

### Penalties (s.33 and Schedule)

| Breach | Maximum penalty |
|---|---|
| Failure to take reasonable security safeguards to prevent a personal data breach | ₹250 crore |
| Failure to notify the Board and affected Data Principals of a breach | ₹200 crore |
| Breach of children's data obligations | ₹200 crore |
| Breach of additional obligations of a Significant Data Fiduciary | ₹150 crore |
| Breach of duties by a Data Principal | ₹10,000 |
| Any other provision of the Act or Rules | ₹50 crore |

Rule-level details (for example breach reporting timelines, log retention periods and consent manager criteria) differ across commentaries. **[verify]** each against G.S.R. 846(E) before you rely on a number. Section 44(3) amended RTI Act s.8(1)(j) on personal information; that change is in force and contested.

## BNS, BNSS and BSA (from 1 July 2024)

The Bharatiya Nyaya Sanhita 2023, Bharatiya Nagarik Suraksha Sanhita 2023 and Bharatiya Sakshya Adhiniyam 2023 replaced the IPC, CrPC and Evidence Act for new cases from 1 July 2024. Conduct before that date continues under the old law through the savings clauses (BNS s.358, BNSS s.531, BSA s.170 **[verify]** on numbers). The IT Act stays in force alongside them.

## BNS: cyber-relevant offences

| Topic | IPC | BNS | Cyber note |
|---|---|---|---|
| 'Dishonestly', 'fraudulently', 'document' | 24, 25, 29/29A | 2(7), 2(9), 2(8) | BNS 2(8) expressly includes electronic and digital records. Needed to read IT Act s.66. |
| Theft | 378, 379 | 303 | Theft of devices. Data 'theft' is usually pleaded under IT Act ss.43, 66, 66B. |
| Extortion | 383, 384 | 308 | Ransom and sextortion demands. |
| Criminal breach of trust | 405, 406 | 316 | Insider misuse of data or funds. |
| Cheating | 415, 417, 420 | 318 (420 is 318(4)) | Online and UPI frauds, investment scams. |
| Cheating by personation | 416, 419 | 319 (319(2): up to 5 years) | Fake profiles and impersonation. IPC 419 carried up to 3 years. Overlaps IT Act s.66D. |
| Forgery | 463 to 471 | 335, 336, 338, 340 | 336(3): forgery for cheating, up to 7 years. 340(2): using a forged document or electronic record as genuine. |
| Defamation | 499, 500 | 356 | Online posts. Community service is an alternative punishment. |
| Criminal intimidation | 503, 506, 507 | 351 (anonymous: 351(4)) | Threatening messages and calls. |
| Stalking, voyeurism, harassment | 354D, 354C, 354A, 509 | 78, 77, 75, 79 | Stalking covers monitoring a woman's internet or electronic communication. |
| Obscenity | 292 | 294 | Read with IT Act ss.67, 67A, 67B and the Digumarti principle. |
| Communal and public order content | 153A, 295A, 505 | 196, 299, 353 | Online speech. Check the current text. |
| Sedition replaced | 124A | 152 | Acts endangering sovereignty, unity and integrity of India, including by electronic communication **[verify]** on wording. |
| Conspiracy | 120B | 61(2) | Cybercrime syndicates. |
| Organised crime (new) | none | 111, 112 | 'Continuing unlawful activity' includes cyber-crimes, economic offences and others, by members of a syndicate. Section 112 covers petty organised crime. **[verify]** punishment ranges. |

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## BNSS: procedure for cyber cases

| Topic | CrPC | BNSS | Why it matters |
|---|---|---|---|
| Audio-video electronic means (definition) | none | 2(1)(a) | Includes recording of search and seizure on a phone. |
| FIR, e-FIR, Zero FIR, preliminary enquiry | 154 | 173 | e-FIR must be signed within 3 days. Zero FIR may be registered at any station. For offences punishable with 3 years or more but less than 7, the officer may, with prior permission of an officer not below Deputy Superintendent of Police, hold a preliminary enquiry within 14 days (s.173(3)). |
| Summons to produce document or thing | 91 | 94 | Used to compel production of devices, accounts and electronic communications. |
| Search warrant | 93 | 96 | Covers electronic records. |
| Seizure | 102 | 106 | Seizure of devices and data carriers. |
| Audio-video recording of search and seizure | none (new) | 105 | Mandatory; recording is sent to the Magistrate. Supports authenticity and chain of custody. |
| Search by police without warrant | 165 | 185 | Recorded; reasons in writing. |
| Forensic evidence collection | none (new) | 176(3) | Forensic experts to visit and collect evidence, with videography, for offences punishable with 7 years or more. In each State it applies from a date the State notifies, within five years of commencement, so check the State notification. |
| Police report | 173 | 193 | |
| Trials and proceedings in electronic mode | none (new) | 530 | Evidence, depositions and appearances through electronic means. |

## BSA: electronic evidence

| Topic | Evidence Act | BSA | Note |
|---|---|---|---|
| 'Document' and 'evidence' include electronic and digital records | 3 | 2(1)(d), 2(1)(e) **[verify]** | Statutory recognition. |
| Equal legal effect of electronic records | none express | 61 | A record cannot be denied admissibility only because it is electronic. |
| Contents of electronic records | 65A | 62 | Proved in accordance with s.63. |
| **Admissibility and certificate** | **65B** | **63** | Certificate in the Schedule, s.63(4)(c). |
| Primary evidence | 62 | 57 **[verify]** | Stored copies produced from proper custody can be primary evidence (see Explanations). |
| Expert opinion; Examiner of Electronic Evidence | 45A | 39(2) | Examiner under IT Act s.79A. |
| Presumptions on electronic Gazettes, agreements, records, signatures, certificates, messages and five-year-old records | 81A, 85A, 85B, 85C, 88A, 90A | 81, 85, 86, 87, 90, 93 | Same subjects, renumbered. |

**Section 63 certificate.** Section 63(1) treats information in an electronic record (printed, stored, copied or recorded from a computer or communication device) as a document admissible without proof of the original, if the conditions in s.63(2) are met. Under s.63(4) a certificate in the prescribed Schedule must accompany it. **Part A** is completed by the party or person in charge of the device and **Part B** by an expert. The hash value and the hash algorithm are stated in both parts. This is stricter than s.65B, which needed no hash value and no expert.
**Practice:** hash at acquisition (for example SHA-256), keep the original device, document chain of custody, and obtain both parts of the certificate.

Pune Bar Association v Union of India (W.P.(C) 599 of 2026, decided 22 May 2026): the Supreme Court upheld s.63(4) and the Schedule as having a rational nexus with authenticity, and held that Part B can also be signed by persons with special expertise in computer science and cyber forensics, not only Examiners notified under IT Act s.79A. It disagreed with the Madras High Court view that only s.79A Examiners may sign, said that view is not binding precedent, but did not express a conclusive opinion and left the question of law open.

# Landmark cases

Citations below are the standard reports. **[verify]** every citation and date against the law report before filing.

| Case | Court and date | Holding | Use it for |
|---|---|---|---|
| **Shreya Singhal v Union of India** (2015) 5 SCC 1 **[verify]** | Supreme Court, 24 Mar 2015 | Section 66A struck down (Art. 19(1)(a), not saved by 19(2)); s.69A and the Blocking Rules upheld; s.79(3)(b) and Intermediary Rule 3(4) read down: actual knowledge means a court order or government notification. | Online speech, blocking, intermediary liability. |
| PUCL v Union of India (M.A. 901/2021 in W.P.(Crl) 199/2013) | Supreme Court, 12 Oct 2022 | No citizen can be prosecuted under s.66A; reliance on it in pending proceedings stands deleted; the Union and the States must ensure compliance. | Quashing s.66A cases. |
| **K.S. Puttaswamy (Retd.) v Union of India** (2017) 10 SCC 1 **[verify]** | Supreme Court, nine judges, 24 Aug 2017 | Privacy is a fundamental right under Art. 21. Restrictions must satisfy legality, legitimate aim and proportionality. Aadhaar judgment: (2019) 1 SCC 1 **[verify]**. | Surveillance, interception, data protection. |
| **Anvar P.V. v P.K. Basheer** (2014) 10 SCC 473 **[verify]** | Supreme Court, three judges, 18 Sep 2014 | Electronic records as secondary evidence need the s.65B(4) certificate; s.65B is a complete code that displaces ss.63 and 65. Overruled Navjot Sandhu (2005) 11 SCC 600 **[verify]** on this point. | Foundation of the certificate rule. |
| Shafhi Mohammad v State of H.P. (2018) 2 SCC 801 **[verify]** | Supreme Court, 30 Jan 2018 | Relaxed the certificate where the party did not control the device. Overruled in Arjun Panditrao. | History only. |
| **Arjun Panditrao Khotkar v Kailash Kushanrao Gorantyal** (2020) 7 SCC 1 **[verify]** | Supreme Court, three judges, 14 Jul 2020 | Anvar correct. The certificate is a condition precedent for secondary electronic evidence; not needed if the original device is produced. Court may direct production of the certificate, subject to timing safeguards (in criminal cases ideally filed with the police report) **[verify]**. | Timing and necessity of the certificate. **[verify]** how courts apply it under BSA s.63. |
| **Pune Bar Association v Union of India** | Supreme Court, 22 May 2026 | BSA s.63(4) and Schedule valid; Part B may be signed by a qualified computer or cyber forensics expert; question left open. | Current law on the s.63 certificate. |
| **Sharat Babu Digumarti v Govt. of NCT of Delhi** (2017) 2 SCC 18 **[verify]** | Supreme Court, 14 Dec 2016 | Where the IT Act covers an offence comprehensively (there, obscenity under s.67 and the s.79 position), the special law prevails and the IPC provision is not attracted. | IT Act versus general penal law. Courts treat it differently for fraud and property offences **[verify]**. |
| Anuradha Bhasin v Union of India (2020) 3 SCC 637 **[verify]** | Supreme Court, 10 Jan 2020 | Freedom of speech and trade through the internet is protected; indefinite shutdowns impermissible; orders must be reasoned, published, and proportionate. | Internet restrictions. |
| Kunal Kamra v Union of India 2024 SCC OnLine Bom 3086 **[verify]** | Bombay High Court, 2:1, 20 Sep 2024 (judgment 26 Sep) | Rule 3(1)(b)(v) Fact Check Unit struck down under Arts 14, 19(1)(a), 19(1)(g). Supreme Court notice 10 Mar 2026, no stay; three-judge bench **[verify]**. | Executive 'truth' determinations. Pending. |
| X Corp v Union of India (W.P. 7405 of 2025) | Karnataka High Court, 24 Sep 2025 | Upheld Sahyog portal and s.79(3)(b) notices; appeal and transfer proceedings reported pending **[verify]**. | Platform takedowns. Pending. |

| Case | Court and date | Holding | Use it for |
|---|---|---|---|
| State of Tamil Nadu v Suhas Katti | Chennai court, Nov 2004 **[verify]** | Widely reported as the first conviction under s.67 of the IT Act (online harassment), alongside IPC offences. | Illustration only. **[verify]** citation. |
| Avnish Bajaj v State (NCT of Delhi) | Delhi High Court, 2008 **[verify]** | Intermediary prosecution arising from an obscene listing; background to the 2008 rewrite of s.79. | History. **[verify]** citation. |

# What has changed recently

| Date | Change | Status or next step |
|---|---|---|
| 30 Nov 2023 | Jan Vishwas Act changes to the IT Act in force (S.O. 4745(E) dated 31 Oct 2023): ss.67C, 68, 72, 72A decriminalised, ss.69B and 70B(7) re-set, s.66A omitted **[verify]**. | In force. |
| 1 Jul 2024 | BNS, BNSS, BSA replace IPC, CrPC, Evidence Act; s.65B becomes BSA s.63 with hash value and expert certificate. | In force. |
| Sep 2024 | Bombay High Court strikes down the Fact Check Unit rule. | Supreme Court appeal pending; no stay **[verify]**. |
| 24 Sep 2025 | Karnataka High Court upholds the Sahyog portal. | Appeal and transfer proceedings reported pending **[verify]**. |
| 22 Oct 2025 | Amendment to IT Rules Rule 3(1)(d) on takedown intimations **[verify]**. | In force. Reported to be under challenge **[verify]**. |
| 13 Nov 2025 | DPDP Rules notified; Board established; Board-related and some Act sections commence. | Main duties from around 13 May 2027. |
| 10 Feb 2026 | IT Rules amendment on synthetic media and shorter takedown timelines (in force 20 Feb 2026). | In force. |
| 10 Mar 2026 | Supreme Court issues notice on the FCU appeal, refuses a stay and refers issues to a three-judge bench. | Pending **[verify]**. |
| 1 May 2026 | Promotion and Regulation of Online Gaming Act 2025 (assent 22 Aug 2025) and Rules 2026 come into force. | In force. Challenges reported. |
| 22 May 2026 | Supreme Court upholds BSA s.63(4) and widens who can sign Part B. | Decided. |
| 13 Nov 2026 | DPDP Rule 4 (consent managers) commences. | Upcoming. |
| Around 13 May 2027 | DPDP main obligations commence; IT Act s.43A omitted. | Upcoming. **[verify]** whether the date is brought forward. |
| Pending | A Digital India Act to replace the IT Act has been proposed for years. I found no enacted statute **[verify]**. | Watch for a Bill. |

# Practice checklist

| Problem | Route |
|---|---|
| Unauthorised access or data damage, compensation | Claim under s.43 before the Adjudicating Officer (up to ₹5 crore) or a civil court above that. Consider a parallel criminal complaint under s.66 and relevant BNS sections. |
| Online financial fraud | Report at the National Cyber Crime Reporting Portal (cybercrime.gov.in) or helpline 1930 quickly, inform the bank, and register an FIR or e-FIR under BNSS s.173. Plead BNS ss.318, 319, 336 and IT Act ss.66C, 66D as relevant. |
| Company suffers a cyber incident | Check CERT-In 6-hour reporting, preserve logs for 180 days, consider sector regulator timelines, and (from around 13 May 2027) DPDP breach duties to the Board and affected persons. |
| Harmful or unlawful content on a platform | Complaint to the platform's grievance officer, then the Grievance Appellate Committee under the 2021 Rules, then court. Government blocking orders under s.69A can be challenged by writ. |

| Problem | Route |
|---|---|
| Electronic evidence | Preserve the original device, compute and record a hash, keep chain of custody, and prepare the BSA s.63(4) certificate (Part A and Part B). Ask for audio-video recording of search and seizure under BNSS s.105. |
| Personal data complaint | Before the DPDP duties commence (around 13 May 2027): s.43A and SPDI Rules. After: complaint to the Data Fiduciary first, then the Data Protection Board, with appeal to TDSAT. |

## Where to verify

- India Code (indiacode.nic.in) for bare Acts, and the Gazette of India (egazette.gov.in) for notifications.
- CERT-In (cert-in.org.in) for the Directions, FAQs and Annexures.
- MeitY (meity.gov.in) for IT Rules amendments and the DPDP Act and Rules.
- The Supreme Court and High Court judgment portals, and the official law reports, for every case citation.

> **Disclaimer.** This sheet is a study aid prepared with AI assistance from public sources. It is not legal advice, may contain errors, and may be out of date. Verify every point, especially those marked [verify], against primary sources before relying on it in advice, pleadings or exams.

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